

TENTATIVE RULING

Case: **State of California, by and through the Department of Water Resources v. Wooden Decoy LLC et al.**

Case No. CV2022-1775 (consolidated with CV2022-1776)

Hearing Date: **July 30, 2026** **Department Fourteen** **9:00 a.m.**

As an initial matter, defendant Glide In Ranch’s (“Glide In”) notice of motion states that it is moving for summary judgment pursuant to Code of Civil Procedure section 437c, or, in the alternative, judgment on the pleadings pursuant to Code of Civil Procedure section 438. (Notice of motion, pp. 1-2.) The Court finds that Glide In fails to provide this Court with sufficient legal authority regarding how a motion for judgment on the pleadings (“MJOP”) can be sought in the alternative to a motion for summary judgment (“MSJ”). (Cal. Rules of Court, rule 3.1113(b); see *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73–74, citing *Sprague v. Equifax, Inc.* (1985) 166 Cal.App.3d 1012, 1050 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].) Thus, the Court declines to consider Glide In’s MJOP in the alternative to its MSJ and will only analyze the motion as seeking summary judgment. (See *Los Angeles Unified School Dist. v. Torres Construction Corp.* (2020) 57 Cal.App.5th 480, 493 [a court may treat a MSJ as a MJOP]; see also *Columbia Casualty Co. v. Northwestern Nat. Ins. Co.* (1991) 231 Cal.App.3d 457, 467-469 [the standard governing the trial court’s consideration of a MJOP “quite different” than the standard governing consideration a MSJ, and “this difference materially affects the burden on the moving and responding parties”].)

Glide In request for judicial notice number 5 is **GRANTED**. (Evid. Code, §§ 452, subds. (d), (h).) Glide In’s request for judicial notice numbers 19, 20, 25, and 26 is **DENIED**. (Evid. Code, § 451, subd. (a).) The Court finds that these requests do not ask the Court to take judicial notice of “[t]he decisional, constitutional, and public statutory law of this state and of the United States” as required by Evidence Code section 451(a), but rather they paraphrase portions of U.S. Code and Federal Code of Regulation sections and ask this Court to take judicial notice of “the fact” that these federal authorities apply to the conservation easements at issue in this matter. (RJN 19, 20, 25, 26.) Glide In’s request for judicial notice numbers 1-4, 6-30 are **DENIED**. (Evid. Code, § 452, subds. (b), (c), (d), (h).) The Court finds the proffered documents are not relevant to the Court’s determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

The Court declines to rule plaintiff State of California, by and through the Department of Water Resources’ (“DWR”) objections to evidence as the evidence objected to is not relevant to deciding this motion. (Code Civ. Proc., § 437c, subd. (q).)

Glide In’s motion for summary judgment is **DENIED**. (Code Civ. Proc., § 437c, subd. (p)(2).) The Court finds that a triable issue of material fact exists as to whether Natural Resources Conservation Service (“NRCS”) was provided with notice of the proceedings. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252 [separate statement effectively concedes the materiality of whatever facts are included. Thus, if a triable issue is raised as to any of the facts in the separate statement, the motion must be denied]; *Anderson v. City of Thousand Oaks* (1976)

65 Cal.App.3d 82, 87 [the purpose of the summary judgment procedure is to determine if issues exist to be tried, rather than to try the issues]; *Copp v. Paxton* (1996) 45 Cal.App.4th 829, 836 [doubts as to the propriety of summary judgment should be resolved against granting the motion]; Cal. Rules of Court, rule 3.1350(d)(2); UMF 5; AUMF 1-8; Kim Decl. ¶¶ 10-12, 14-16, 23, Exhs. 2, 3.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Wight v. FCA US, LLC**
 Case No. CV2025-0415

Hearing Date: **July 30, 2026** **Department Thirteen** **9:00 a.m.**

Motion to compel:

Defendant FCA US, LLC's unopposed motion to compel plaintiffs Linda E. Wight and Thomas E. Wight's depositions is **GRANTED**. (Code Civ. Proc., § 2025.450; Lopez decl., ¶¶ 2-10, Exhibits A-D.) Plaintiffs' depositions must be completed by **August 14, 2026**.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for sanctions:

On the Court's own motion, defendants FCA US, LLC and Hoblit Chrysler Dodge Jeep Ram's motion for sanctions is **CONTINUED** to **September 3, 2026**, at 9:00 a.m. in Department Thirteen.

Order to show cause:

Parties are **DIRECTED TO APPEAR**.